

25VECV02234 25VECV02234

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-09-01

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CT%2C09%2F01%2F2026

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Case Number: 25VECV02234 Hearing Date: September 1, 2026 Dept: T

23VECV00862 Dominguez v Campana

[TENTATIVE] ORDER: Defendant William Camapna's Motion for Sanctions per Code of Civil Procedure, section 128.7 is DENIED.

Plaintiffs Iva Dominguez, Consuelo Saldana, and Miguel Dominguez's Request for Judicial Notice (filed on March 6, 2025) is GRANTED as to the existence of the documents and not as to any hearsay or facts in dispute.

Plaintiffs Iva Dominguez, Consuelo Saldana, and Miguel Dominguez's Evidentiary Objections (filed on March 6, 2025) are MOOT due to the Supplemental Declaration of Steve Lopez filed on January 7, 2026.

Introduction

Defendant

William Campana (Defendant) moved for monetary sanctions per Code of Civil Procedure, section 128.7 (128.7 Motion) against Attorney Dennis Geselowitz (Geselowitz), Counsel of Plaintiffs Consuelo Saldana (Saldana), Iva Dominguez (Iva[1]), and Miguel Dominguez (Miguel) (collectively, Plaintiffs). Defendant requested \$5,285.00 from Geselowitz.

In

analyzing this matter, the Court reviewed: the moving papers originally filed on June 21, 2023; the opposing papers originally filed on August 8, 2023 and August 10, 2023; the reply brief filed on August 17, 2023, the subsequent moving papers filed on January 31, 2025; the subsequent opposing papers filed on March 6, 2025 and September 9, 2025; the subsequent reply brief filed on

September 16, 2025; the supplemental opposition brief filed on December 10, 2025; the reply brief filed on December 12, 2025; the supplemental declaration of Steve Lopez filed on January 7, 2026; the supplemental opposition brief filed on August 19, 2026; and the supplemental reply brief filed on August 26, 2026.

[NOTE: The motion for sanctions was originally filed on June 21, 2023. The original opposition was filed on August 10, 2023. The original reply was filed on August 17, 2023. This matter was originally set to be heard on August 21, 2023. But the matter was continued several times. Defendant re-filed the motion on January 31, 2025. The June 2023 and the January 2025 motions are verbatim copies of each other starting from Section III.B. of both motions (See January 2025 Motion pg. 7:6 and June 2023 Motion pg. 11:2.) The major difference between the two motions is that the original June 2023 Motion sought sanctions against both Plaintiffs and Geselowitz, but the January 2025 Motion sought sanctions only from Geselowitz. Section I "Introduction" and Section II "Background" are not verbatim copies in both motions but the statements are, in general, similar. The January 2025 Introduction and Background sections added additional facts as to the events occurring after June 2023.]

Discussion

Defendant

argued that the First Amended Complaint (FAC) was filed for an improper purpose and that the instant causes of action (COA) for malicious prosecution, elder abuse, and abuse of process were filed for an improper purpose, such as to harass or cause needless increase in the cost of litigation, and the claims were not warranted by existing law. (Code Civ. Proc. sec. 128.7(b)(1) and (2).)

Defendant asserted that the COAs in the First Amended Complaint (FAC) were not warranted by existing law. (Code Civ. Proc., sec. 128.7(b)(2).)

The COAs in the FAC are seen to be sufficiently pled with supportive facts and would have survived a general demurrer. The factual allegations made in the section titled "General Allegations" are sufficient to plead facts to support the pleading elements of each COA. (FAC pars. 6-35.)

Specifically, as to the first COA for malicious prosecution, Defendant asserted that Plaintiffs could not truly allege that the prior action terminated with a final and favorable outcome in Plaintiffs' favor. At the pleading stage,

the fact allegation that Plaintiff obtained a final and favorable termination would have been deemed true. To the extent that Defendant would have controverted the fact allegation at the pleading stage by citing to the judgment in their favor and Plaintiffs' pending appeal is an argument to show prematurity and/or lack of ripeness. Because an appeal was pending, the matter would only have been abated until the appeals were exhausted. The fact that Plaintiffs subsequently lost their appeals cannot be a basis for sanctions since the resolution of the appeal on June 21, 2023, when the instant motion was originally filed, had not yet been finalized. The fact that the malicious prosecution COA was premature or lacked ripeness is insufficient to show that the COA was not warranted by existing law. At most, the instant matter would have been abated/stayed, which the Court ultimately decided to do with the case. The Court does not agree with Defendant's contention that the malicious prosecution COA was not warranted by existing law at the pleading stage.

Defendant argued that the second COA for elder abuse, filed only by Saldana, was not warranted by existing law because the FAC failed to plead facts to allege that Defendant "took, secreted, appropriated, obtained, or retained real or personal property of an elder for a wrongful use, with intent to defraud, or by undue influence." (Welf. & Inst. Code, sec. 15610.30.)

Saldana's elder abuse claim is grounded upon the alleged taking of her ownership interest in the real property at issue and Defendant's attempted wrongful eviction of Plaintiffs, despite Plaintiffs allegedly having full ownership interest in the real property, and Defendant's claim to 100% of the proceeds from a sale of the real property. (FAC pars. 14, 15, 32 and 50.) Because Plaintiffs alleged to be 100% owners, Defendant alleged eviction and claim to 100% of sale proceeds is alleged to be the wrongful taking. The review of the pleading shows sufficient fact pleading of a wrongful taking. Defendant asserted that the elder abuse COA was not warranted under existing law because the COA is barred by the litigation privilege and because the claim that Defendant wrongfully took the property was false. Defendant argued that the prior interlocutory judgment for partition entered December 12, 2022, supported the litigation privilege and contention that Saldana's claim was false. (Defendant's Exh. 1: William Campana v. Consuelo Saldana et al. (Super. Ct. Los Angeles County, 2022, No. BC668542 (Campana Case).) However, Defendant cannot rely on the contention that the interlocutory judgment presents an absolute defense to Saldana's claims, as if the interlocutory judgment was final, but then in the above argument against the first COA argue

that the interlocutory judgment was not finalized. Defendant cannot “blow hot and cold” at the same time. Defendant’s contentions are inconsistent. The procedural posture of the Campana Case in June 2023, when this motion was first filed, was that Plaintiffs Iva and Miguel both held a 25% undivided ownership interest in the property and the remaining 50% was held by Defendant pursuant the interlocutory judgment. However, it is undisputed that the interlocutory judgment was being appealed by Plaintiffs when the instant motion was originally filed in June 2023. The Notice of Appeal being filed and served upon Defendant on February 7, 2023. (See Defendant’s Exh. 4.) Because the interlocutory judgment was on appeal in June 2023 and not finalized, Defendant’s reliance upon the interlocutory judgment to defend against Plaintiffs’ fact allegations is unsupported and unpersuasive. Defendant’s reliance on the interlocutory judgment is insufficient to show that the elder abuse COA was not warranted by existing law at the pleading stage.

Defendant argued that the third COA for abuse of process was not warranted by existing law because Plaintiffs cannot prove an ulterior purpose and a willful act in the use of process. Defendant further argued that the litigation privilege is a bar to the COA. Defendant again relies upon the interlocutory judgment to support his argument to show that the COA was not warranted by existing law. Plaintiffs alleged that the legal procedure at issue is Defendant’s institution of writ of possession on February 21, 2023, and a subsequent service of a five-day notice to vacate. Plaintiffs alleged the writ was improper because a receivership was in place and Defendant did not have the authority, both individually and without authority from the receiver, to seek writ of possession. (FAC pars. 26-27, and 54.) Again, as was reviewed above in the second COA, Defendant’s position relying on the interlocutory judgment as being finalized is inconsistent with the argument made against the first COA. It is further noted that Defendant’s filing of the writ of possession on February 21, 2023, was after service/filing of the February 7, 2023, Notice of Appeal. Even if it was determined that Defendant was authorized to file the writ of possession without consent from the Receiver, there remains the issue of whether the appeal stayed the enforcement of the interlocutory judgment and thus making the writ of possession improperly filed at that time. Defendant’s own evidence submitted with the instant motion presents potential facts to show that Plaintiff may have grounds to allege the abuse of process COA. In any event, the basis of the argument against the third COA is unpersuasive because the interlocutory judgment was being appealed. The interlocutory judgment was not a finalized judgment

and at the time the FAC was filed the alleged facts were sufficient to plead the abuse of process claim. In that sufficient facts were alleged to support the abuse of process COA; the Court is not persuaded that the third COA was not warranted by existing law at the pleading stage.

It is undisputable that evidence, which existed beyond the four corners of the pleading, supported Defendant's defenses and those defenses potentially could overcome the allegations of the FAC in June 2023. Based upon Defendant's Special Motion to Strike (filed on May 26, 2023, and filed prior to the instant motion for sanctions being filed), similar issues to the ones argued above were presented, the Court's review of the matters that went beyond the four corners of the pleading (i.e., evidence) allowed the Court to determine that Plaintiffs could not show the probability of prevailing on the merits of the FAC. However, the defenses reviewed above and in the arguments in the Special Motion to Strike do not detract from Plaintiffs "filing" the FAC. The FAC's allegations to support the COAs were plead with sufficient factual support to show that the claims were, at the least, warranted by existing law at the pleading stage.

The Court does not find that the filing of the FAC was not warranted under existing law at the pleading stage. Defendant's argument based upon Code of Civil Procedure, section 128.7(b)(2) is not persuasive.

As to the contention that the FAC was filed for an improper purpose (Code Civ. Proc., sec. 128.7(b)(1), Defendant argued that the FAC is a rehash of Plaintiffs' First Amended Cross-Complaint (FAXC) filed in William Campana v. Consuelo Saldana et al. (Super. Ct. Los Angeles County, 2022, No. BC668542). (Defendant's Exh. 6.) However, a review of the allegations in the FAXC showed that the sole claim alleged was for quiet title. Quieting title and the claims in the FAC are not the same or a "rehash" because the instant FAC does not resolve a dispute over the title of real property but instead resolves the issue of whether the filing of the BC668542 case was improper. It is noted that some of the facts alleged in both actions are shared but the claims pled in the two actions are different. Defendant further argued that the FAC was filed to increase Defendant's litigation costs. However, the argument is incorrectly grounded on the presumption that the instant FAC and the prior FAXC are duplicative. The Court does not agree with Defendant that the two actions are duplicative. Defendant's arguments pursuant Code of Civil Procedure, section 128.7(b)(1) are

not persuasive.

Defendant did not meet their initial burden of persuasion and the motion is unpersuasive.

The court also notes Defendant's argument is primarily that Plaintiff failed to include additional facts that would have exonerated Defendant and/or made the instant action baseless. That was not required here. The factual allegations are seen to be sufficient to support the pleading elements that are required for each COA. It's not Plaintiffs' job to both state his case and then assist the defendant in knocking it down.

The motion for sanctions is DENIED.

[NOTE: Despite Defendant citing to section 128.7(b)(3) [lack of evidentiary support] in Section III.A. of the motion (see motion pg.6:18-20), Defendant's Points and Authorities failed to present any express/specific argument (i.e., application of facts to law) as to Plaintiffs' alleged lack of evidentiary support. However, Defendant's Points and Authorities Section III.B., although titled to argue lacking legal merit and only citing to CCP sec. 128.7(b)(2), it would appear that Defendant is actually arguing lack of evidentiary support because Defendant argued that Plaintiffs did not have evidence to support the COAs (as opposed to pleading facts in the FAC). To the extent Defendant wants to argue that the motion was grounded on subsection (b)(3) [lack of evidence], the evidentiary burden to escape sanctions (whether as to lack of legal merit or evidence) is "light." Counsel only needs to have "made a reasonable inquiry into the facts and entertained a good faith belief in the merits of the claim" and "need not amass even enough evidence to create a triable issue of fact" as in summary judgment proceedings or show counsel could overcome a demurrer. (Kumar v. Ramsey (2021) 71 Cal.App.5th 1110, 1126.) Based upon Mr. Geselowitz's declaration at pars. 6-7, Counsel has provided evidence to meet the "light" evidentiary burden.]

[1] Due to the shared family name between Iva and Miguel Dominguez, the Court identified the two plaintiffs by their first names to avoid confusion. The Court means no disrespect to the Plaintiffs.

[TENTATIVE] ORDER: Defendant William Camapna's Motion for Attorneys'

Fees and Costs is GRANTED at the reduced and reasonable amount of \$17,783.95.

Introduction

Defendant William Campana (Defendant) moved for attorneys' fees and costs per Code of Civil Procedure, section 425.16 against Plaintiffs Iva Dominguez, Consuelo Saldana, and Miguel Dominguez (collectively, Plaintiffs). Defendant requested \$23,076.96 in fees and costs (fees at \$22,039.10 and costs at \$1,033.96).

The Court reviewed the following briefs: the motion brief filed on July 12, 2023; the opposition brief filed on August 10, 2023; and the reply brief filed on August 17, 2023.

Discussion

A prevailing defendant as to a special motion to strike is entitled to mandatory, reasonable attorney fees and costs. (Code Civ. Proc., sec. 425.16(c)(1); *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1141-1142.)

It is undisputed that Defendant is the prevailing party on the Special Motion to Strike as seen in the Court's ruling of June 22, 2023, and the Court of Appeal's affirmation of the ruling and the Supreme Court of the United States' denial of Plaintiffs' writ of certiorari. Attorney Steve Lopez (Lopez), a 23-year attorney, testified that he charged a rate of \$475/hour and charged 46.40 hours of work. (Lopez Decl. pars. 2-6, 9-11 and Exh. 3.)

However, a review of the line items/descriptions of the work performed show that the work included work that is separate from the Anti-SLAPP Motion. The time entries showed that Defendant included work on matters like the motion for sanctions and discovery. The matters that are outside the scope of the Anti-SLAPP are not compensable on the instant fees motion because they do not relate to the Anti-SLAPP motion. The Court's calculations show that the time expended solely on the Anti-SLAPP motion amounts to approximately 37.2 hours. The Court finds the reduced time expended on solely the Anti-SLAPP motion to be reasonable. The Court also finds that Lopez's hourly rate to be reasonable based upon his education and experience as provided above. The Court reduces the fees on the Anti-SLAPP motion to \$17,670.00.

As for costs related to the Anti-SLAPP motion, the invoice shows that the items/descriptions for the costs charged also involved costs that are not associated with the Anti-SLAPP motion. The only entries that appear to be

associated with the Anti-SLAPP motion are the fees dated May 26, 2023, and June 14, 2023, which are the dates the Anti-SLAPP motion and the reply were filed, respectively. Because the request for Anti-SLAPP costs included costs unrelated to the Anti-SLAPP motion, the Court reduces the cost amount to only those related to the Anti-SLAPP motion and the reply, which totals \$113.95.

The Court of Appeal affirmed the Trial Court's ruling and the Supreme Court of the United States denied Plaintiffs' writ of certiorari.

Plaintiffs further argued that the fees/costs requested were not reasonable and the Court considered the argument in reducing Defendant's fees/costs award.

The motion for attorneys' fees is GRANTED and reduced to the reasonable amount totaling \$17,783.95. Costs would be per Memorandum of Costs filed on 7/5/2025. No motion to tax costs was filed.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.